

Court No. - 1

Case :- WRIT - C No. - 55814 of 2017

Petitioner :- M/S Kumar Engineering, Ghaziabad

Respondent :- Executive Engineer, P.V.V.N.L. Muradnagar
Ghaziabad & 2 Ors.

Counsel for Petitioner :- Kuldeep Saxena, Vijit Saxena

Counsel for Respondent :- Chandan Agarwal

Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

This petition for writ be re-notified on 06.12.2017.

Order Date :- 23.11.2017

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(Ashok Kumar,J.) (Govind Mathur,J.)

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Hon'ble Dilip Gupta, J.

Hon'ble Jayant Banerji, J.

The petitioner disputes the demand notice dated 22 September 2017 and the bill dated 18 November 2017 that have been issued by the Executive Engineer of Paschimanchal Vidyut Vitaran Nigam Ltd, Ghaziabad.

The records indicate that the petitioner has already represented before the Executive Engineer on 30 October 2017 under the provisions of Clause 6.5 of the U.P. Electricity Supply Code, 2005.

Sri Chandan Agarwal, learned counsel appearing for the respondents states that a decision shall be taken within ten days.

This petition is, accordingly, disposed of with a direction to the Executive Engineer to dispose of the objection filed by the petitioner within ten days from today.

In so far as disconnection of power is concerned, the petitioner may move an appropriate application also before the Executive Engineer.

It is made clear that the Court has not adjudicated on the merits of the case and it will be for the Executive Engineer to take a decision in accordance with law.

Order Date :- 6.12.2017

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(Dilip Gupta, J)

(Jayant Banerji, J)